

## 24STCV03055 24STCV03055

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-07-16

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C735%2C07%2F16%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C735%2C07%2F16%2F2026)

Source SHA-256: 24d1c3ab9083780bf1d7a3f4e3ea2810a298408885fd43493b6a63db989b7155

Case Number: 24STCV03055 Hearing Date: July 16, 2026 Dept: 735

Rodriguez v. University Mechanical &  
Engineering Contracts, Inc.

Defendant's Motion for Summary Judgment, or  
in the alternative, Motion for Summary Adjudication

### BACKGROUND

On February 21, 2024, Plaintiff Danny Rodriguez filed the operative first amended complaint against Defendant University Mechanical & Engineering Contractors, Inc., asserting causes of action for general negligence and premises liability. Plaintiff was working on a construction site with laborers working for Defendant. Plaintiff alleges Defendant's workers asked him for help loading and unloading a sound attenuator from a rail flat car without being taught Defendant's policies and procedures. While performing this task, Plaintiff's left hand was pinched between the strap and sharp edge of the attenuator, causing severe lacerations. Plaintiff's ring finger was thereafter amputated, and he can no longer move his pinkie finger.

### EVIDENCE OBJECTIONS

"In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (CCP § 437c(q).) Plaintiff's objections to Defendant's evidence are overruled.

### DISCUSSION

## Open and Obvious Condition

Defendant asserts that Plaintiff's claims for negligence fail because the condition which caused Plaintiff's injury was open and obvious, relieving Defendant of any duty of care. If a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner or controller of the site is under no further duty to remedy or warn of the condition.

## Defendant

argues that it had no duty to prevent Plaintiff from voluntarily placing his hands on a heavy load that was obviously under tension and stuck. Defendant asserts that Plaintiff testified that no one asked him to try to resolve the stuck load. In opposition, Plaintiff asserts that Defendant has not proffered any evidence supporting the implication that the specific hazards were open and obvious to someone not an expert in physics. The Court agrees. Defendant has not established the condition was open and obvious as a matter of law.

## Assumption of the Risk

Defendant argues that it cannot be liable for Plaintiff's injuries because Plaintiff assumed the risk injury by attempting to remedy the stuck load. Under California's primary assumption of risk doctrine, a defendant owes no duty to protect a plaintiff from the inherent risks of an activity in which the plaintiff voluntarily chooses to engage. Defendant again emphasizes that Plaintiff chose on his own—without any request, invitation, or direction from UMEC—to try and get the sound attenuator unstuck. Defendant asserts that this is an inherently hazardous task: even when performed with reasonable care, heavy suspended loads can and do move unpredictably, including sudden swings, shifts, or pulls on the line. As stated, Defendant has not presented evidence supporting its assertion that the activity which caused Plaintiff's injury was an "inherently hazardous task."

## Duties

### of Subcontractor

## Defendant

asserts that as a subcontractor under the general contractor for whom Plaintiff worked, Defendant did not owe a duty to supervise the general contractor's

employees. Defendant argues that if Defendant's crew had ordered Plaintiff away, that "would have been an act of insubordination." In opposition, Plaintiff cites the subcontract, which states, "SUBCONTRACTOR is obligated to provide a safe and healthful working environment for its employees and any other persons exposed to its work." The subcontract does not relieve Defendant of duties of care to other persons on the worksite as a matter of law.

## CONCLUSION

The Court denies Defendant's motion for summary judgment, or in the alternative, motion for summary adjudication.

Defendant to give notice.